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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.3335/2014

Farmers Organization of Peer Mahal Distributary through its VP
VS.
Government of Punjab through Secretary (Irrigation), etc.
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JUDGMENT

Date of Hearing:-	13.02.2017.
Petitioners by:-	Mr. M. Abdus Sattar Chughtai, Advocate in W.P. Nos.3335, 3996 and 6656 of 2014.
	Mr. R. M. Razzaque, Advocate in W.P. Nos.2328, 3293, 3294, 3574, 3575, 3577 of 2014 and 24289 of 2016.
	Ch. Muhammad Amin Javaid, Advocate in W.P. No.3932 of 2014.
	Mian Shahid Rasool, Advocate in W.P. No.3995 of 2014.
	Mian Khalid Habib Elahi, Advocate in W.P. No.21028 of 2014.
	Mr. M. A. Ghaffar ul Haq, Advocate in W.P. Nos.5343, 5655, 6334 and 6608 of 2015.
	Mr. Muhammad Mushtaq Pasha, Advocate / vice counsel in W.P. No.6131 of 2015.
	Mr. Asif Shahzada, Advocate.
Respondents No.1 to 3 by:-	Mr. Waqar Ahmad Chaughary, A.A.G. alongwith Zulfiqar Ali, Manager, PIDA and Muhammad Arshad Kamboh, Assistant Manager, PIDA.
Respondent No.4 by:-	Mr. Ghazanfar Haider Pasha, Advocate.

CH. MUHAMMAD IQBAL, J:- Through this single judgment, I intend to decide the titled writ petition as well as connected Writ Petition Nos.2328, 3293, 3294, 3574, 3575, 3577, 3932, 3995, 3996, 6656, 21028 of 2014, 5343, 5655, 6131, 6334, 6608 of 2015, 24289 of 2016 as common questions of law and facts are involved in all these writ petitions.

2. Brief facts of the cases that the Government under Punjab Irrigation & Drainage Authority Act, 1997 (PIDA Act, 1997) framed Punjab Irrigation & Drainage Authority (Farmers Organizations) Rules, 2010 and constituted Farmers Organizations (FOs) and after holding election, its members were elected for an initial period of three years in 2011 and the separate Agreements dated 04.02.2001 for Transfer of Irrigation Management (IMT) were executed between the Punjab Irrigation & Drainage Authority (PIDA) with the FOs of the petitioners in which it was settled between the parties that the period of office bearers shall be three years as envisaged under Rule 9 of the PIDA (Farmers Organization) Rules, 2010. The Authority in its 42nd Meeting held on 25.05.2011 approved Agenda Nos.2 & 3 of Agenda Nos.1 to 15 containing proposal for making amendment in Rule 9 of the FOs Rules, 2010 for extension of tenure of office bearers of the FOs of Category A & B for a further period of 3 years (total tenure 6 years) under revised IMT Model which was turned down by the Government. Hence, these petitions.

3. Learned counsels for the petitioners submits that the impugned notifications to the extent of dissolution of petitioners' Farmers Organizations (FOs) may kindly be suspended and the respondents may be restrained from interfering into the lawful functions of the petitioners' FOs till the completion of their tenure in view of the proposed minutes of the meeting and decisions of the Authority thereof, and the

respondents' act for not extending the period of the petitioners' FOs till 2017 may kindly be declared illegal. It is also prayed that the respondents may be directed to upgrade the category of the petitioners' FOs from Category B to Category A.

4. Conversely, learned Law Officer appearing on behalf of respondents No.1 to 3 duly assisted by learned counsel for respondent No.4 submitted that the Farmers Organizations were established only for three years as envisaged under Rule 9 of the PIDA (FOs) Rules, 2010 and said period has been completed. The petitioners themselves executed agreements with the PIDA and under Clause 15 of the said Agreements, any disputes relating to the Agreements shall be resolved through Arbitration without having recourse to the Courts; further submits that in 45th meeting held on 17.10.2012 the proposal for enhancement of tenure was turned down by the Government of the Punjab and tenure has been maintained 3 years as already prescribed in the Rules, as such, the writ petitions may kindly be dismissed.

5. I have heard the arguments and gone through the record with the able assistance of learned counsels for the parties.

6. The Punjab Irrigation and Drainage Authority Act, 1997 (PIDA Act, 1997) was passed by the Provincial Assembly of the Punjab with the vision or on reason to establish an Authority to implement the strategy of the Government of Punjab for streamlining the irrigation and drainage system with the object to replace the existing administrative

setup and procedures with more responsive, efficient and transparent arrangements, to achieve economical and effective operation and maintenance of the irrigation, drainage and flood control system in the Province, to make the irrigation and drainage network sustainable on a long-term basis by allowing the participation of beneficiaries in the operation and management. The Government under Section 16 of the PIDA Act, 1997 is competent to notify rules for smooth carrying out the purpose of the Act and by invoking powers under said provision the Government made rules i.e. PIDA (FOs) Rules, 2010 which are statutory one. According to Rule 9 of the PIDA (FO) Rules, 2010, the tenure of the Farmers Organization or Nehri Panchayat shall be three years commencing from the date notified by the Authority. Rule 9 of the PIDA (FO) Rules, 2010 is as under:-

“9. Tenure.— the tenure of the Farmers Organization or Nehri Panchayat shall be three years commencing from the date notified by the Authority, provided that the Authority may extend their respective tenures up to one year in the public interest.”

7. It is an admitted fact that the petitioners executed separate agreements with the PIDA and under Clause 3 of the said agreements, the period was settled for three years and the parties to the agreements are bound to act upon the terms and conditions of the said agreements.

Clause 3 of the Agreements is reproduced as under:-

“3. This Agreement shall be valid for a period of three years with effect from the date of transfer of functions to Farmers Organization, provided that it may be terminated by the Authority earlier or extended beyond the said period. Initially, all FOs shall be placed in category ‘B’ and their progression to category ‘A’ shall be subject to satisfactory performance as determined by the Authority.”

Furthermore, in the said agreements, a note is written which is reproduced as under:-

“Note: The evaluation of FOs as per assigned functions will be carried out by third party every year and for progression from category “B” to category “A” Farmers Organizations have to score at least 75% marks. All FOs will remain in Category “B” for 2 years and in Category “A” for 4 years. However, if FO scores upto 90% marks during first year, it will be promoted to Category “A”. their continuity in Category “A” will be subject to satisfactory performance and attaining at least 75% marks. In case of failure of above, the FO will be reverted back into Category “B”. However, the tenure of six years of FOs will be subject to the revision in PIDA FOs Rules 2010 to be approved by the Government of Punjab.”

According to the minutes of 45th meeting of the Authority (PIDA) held on 17.10.2012 (in agenda item No.3), the Authority decided that “The House endorsed the amendments in FOs and AWBs Rules-2010 and desired that same may be forwarded to Government for approval. From the perusal of the said agreements as well as the note reproduced above, it is proved on record that the period for FOs was mutually settled for three years only, however, the proposed tenure of six years of the FOs was subject to the revision of PIDA (FOs) Rules, 2010 which was to be approved by the Government of the Punjab but in this respect there is no approval of the Government available is on record, as such, tenure of FOs and AWBs remained 3 years as already given in the Rules”. Further as per Clause 15 of the Agreement, any dispute between FO and the Authority the matter shall be resolved through the process of Arbitration which has not been invoked by the petitioners, as such, in presence of Arbitration Clause, the petitioners are debarred to challenge the impugned action through these constitutional petition.

8. Undoubtedly, the members of the petitioners' organizations succeeded to the management in the year 2011 and their tenure of three years for lawfully retaining office elapsed on 01.04.2014 and since then they are enjoying the office without any justifiable cause. The glorified spirit of this entire newly emerged system revolved around the genuine representation/participation of the lawfully elected members into the administration/management of the establishment and right of eligible voter to select his favourite and suitable candidate cannot be encompassed or perished on the whim and caprice of those members who have already enjoyed the full tenure of holding the office for which period they were elected, as such, the object of filing these petitions is tainted with malafide to debar the voters to exercise the right of vote in favour of their choiced members.

9. In view of under Rule 9 of PIDA (FOs) Rules, 2010 as envisaged in Clause 3 of the said agreements, the period of FOs is three years. Furthermore, the PIDA (FOs) Rules, 2010 are statutory rules and according to the decision of the Authority (PIDA) in 45th meeting, the period of FOs is settled as three years which period has already been lapsed, as such, the authority has rightly passed the impugned order which are absolutely in consonance with the Rules as well as Agreement executed between the PIDA and the petitioners' FOs.

10. Learned counsels for the petitioners have miserably failed to point out any illegality and material irregularity in the impugned order

warranting interference by this Court in its constitutional jurisdiction, resultantly, these writ petitions have no force and the same are hereby **dismissed.**

**(CH. MUHAMMAD IQBAL)
JUDGE**

Approved for reporting.

Judge

MJH